

INSPECTION AND REVIEW OF EDUCATION RECORDS

Loudoun County School Board endorses the rights of parents and students to be made aware of the student records kept by the School Division, to inspect and review those records, to have those records explained to them, to request an amendment to the content of those records in certain circumstances, and to have those records protected against disclosure. This policy establishes the procedures for the inspection and review of education records. Education records shall be maintained in compliance with all federal and state laws. With respect to applicable state law, Loudoun County Public Schools (LCPS) manages and retains student records in accordance with the Virginia Public Records Act, Va. Code § 42.1-76 et seq., and the applicable record management retention schedules issued by the Library of Virginia.

A. Definitions. For the purpose of policies concerning student records, the following definitions shall apply:

1. Parent. A parent may be a biological or adoptive parent, legal guardian, or person acting as a parent in the absence of a parent or guardian. Unless provided with evidence to the contrary, School Officials (as defined in Policy 8640 (Disclosure of Student Personally Identifiable Information and Other Educational Records)) may presume the parent has the authority to exercise the rights provided in this policy.

2. Student. A student is a person for whom records are maintained by School Officials, including former students.

3. Eligible Student. An eligible student under these policies is any present or former student who is eighteen years of age or older. The rights and consent required by parents shall pass exclusively to the student upon reaching the age of eighteen years.

4. Education Records. Education records include “scholastic records” as defined under Virginia law, and may also be referred to as “cumulative records” with varying subsets of records. Detailed information related to records are addressed in Policy 8610 (Student Records) and may be recorded in any way, including, but not limited to, handwriting, print, computer media, videotape, audiotape, film, microfilm, or microfiche. With the exception of emails pertaining to special education services, as provided for in the Virginia Regulations Governing Special Education Programs for Children with Disabilities, 8 VAC 20-81-10, emails are not otherwise considered education records unless a printed copy of the electronic information is placed in the student’s file or is stored electronically under an individual student’s name on a permanent and secure basis for the purpose of being maintained as an education record. For purposes of these policies, electronic information that exists on a backup server, a temporary archiving system, or on a temporary basis on a computer is not an education record and is not considered as being maintained.

INSPECTION AND REVIEW OF EDUCATION RECORDS

B. Notification of Rights. The parents of students in attendance and eligible students in attendance shall be notified annually by such means as determined by the administration to be reasonably likely to inform them of their rights under this policy. These means shall include provisions to effectively notify parents or students identified as having a primary or home language other than English. The annual notification shall include:

1. The right to inspect, review, and obtain copies of the student's record and the procedures for doing so. However, teacher-created test materials may be copied only with the permission of the principal or designee;
2. The right to request an amendment to the content of those records, where permitted, and the procedures for doing so;
3. The location where copies of policies relating to the Family Educational Rights and Privacy Act (FERPA) can be obtained;
4. The right to file a complaint with the U.S. Department of Education's Student Privacy Policy Office (SPPO) and the address of that office; and
5. The categories of information designated as Directory Information, the right to refuse to permit any or all of these categories to be so designated for that student, and the procedures, form of notification, and time period within which this notification must be given.

C. Inspection and Review.

1. Rights of Individuals. Parents of a student under the age of eighteen years shall have the right to inspect and review the records of the student by following the procedure set forth in subparagraph (C)(4). Eligible students generally otherwise assume these rights of parents when they reach the age of eighteen. Thereafter, the parents of eligible students no longer have the right to inspect and review these records without the consent of the eligible student, but the School Division may choose to provide the records to the parents, without the eligible student's consent, if such eligible student remains a dependent, as the term is defined in Section 152 of the Internal Revenue Code of 1986. Students under the age of eighteen years may be given reports on their achievement, behavior, attendance, and standardized or other tests and may be shown other information from their scholastic records in a counseling session with a certificated staff member or, with the written permission of the students' parents, may inspect and review materials in their school records upon their own request. No student, including eligible students, shall have access to any financial records of the parents.

INSPECTION AND REVIEW OF EDUCATION RECORDS

2. Professional Assistance. A qualified licensed staff member shall be available to any parent or eligible student during an inspection and review meeting and shall give explanations and interpretations in response to reasonable requests. A qualified licensed staff member must be present during the review of records by a student under the age of eighteen years and shall explain and interpret the records to the student.

3. Copies of Records. The right of a parent or an eligible student to inspect and review records includes the right to obtain a copy of those records.

4. Procedure. The procedures for parents or eligible students to request an inspection and review meeting, request to release or exchange student records information to a third party, or to receive copies of student records can be found in this policy's accompanying regulation (8630-REG(F)).

5. Limitations. The right to inspect and review shall not include:

- a. Records of instructional, supervisory, or administrative personnel or other educational personnel ancillary thereto which are in the sole possession of the maker and are not accessible or revealed to any other person except a temporary substitute.
- b. Records relating to a student who is eighteen years of age or older which are created or maintained by a physician, psychiatrist, psychologist, or other recognized professional with respect to the provision of treatment of the student and are not disclosed to anyone other than individuals providing the treatment, provided however that such records can be personally reviewed by a physician or other appropriate professional of the student's choice.
- c. Records created or received by LCPS after the individual is no longer a student in attendance and that are not directly related to the individual's attendance as a student.
- d. Records which contain information of more than one student, except that the parent or eligible student may inspect and review, upon proper redaction, where practicable, or be informed of only the specific information that pertains to that student.

D. Amendment of Records.

INSPECTION AND REVIEW OF EDUCATION RECORDS

1. Right to Seek Amendment. A parent or eligible student who believes that information contained in the student's records is inaccurate, misleading, or in violation of the student's privacy rights may request the custodian of those records to amend them. Within fifteen days after receipt of such request, the custodian shall decide whether or not to amend the records as requested and shall notify the parent or eligible student of the decision. If the decision is to refuse the request for amendment, the parent or eligible student shall be informed of the right to a hearing to challenge the contents of the student's records and the procedure to obtain a hearing.

2. Procedure. The procedures for a parent or eligible student to request amendment of the student's records can be found in this policy's accompanying regulation (8630-REG(F)).

E. Disclosure of Records to Other Parties.

1. Except as provided in Policy 8640 (Disclosure of Student Personally Identifiable Information and Other Educational Records), personally identifiable information from a student's record shall not be disclosed without consent of the student's parents or the eligible student.

2. A parent or eligible student shall have the right to inspect the record of disclosure of personally identifiable information from the student's records.

[Former Policy 8-73]

Adopted: 6/12/79

Revised: 3/10/87, 6/22/93, 7/1/97, 1/22/01, 4/25/06, 11/29/11, 8/14/18, 12/12/23

Current Revision: 11/20/25

Leg. Ref.: Code of Virginia §§ [22.1-287](#) through [22.1-289](#); [42.1-76](#) et seq.;
[20 U.S.C. § 1232g](#); [8 VAC 20-81-10](#)

Cross Ref.: Policy [8610](#), Student Records and Policy [8640](#), Disclosure of Personally Identifiable Information